EXHIBIT 13

MAPLETON CITY
CITY COUNCIL MINUTES
MAY 3, 2017

PRESIDING AND CONDUCTING:	Mayor Brian Wall
Members in Attendance:	Ryan Farnworth Scott Hansen Jim Lundberg Mike Nelson Jonathan Reid
Staff in Attendance:	Cory Branch, City Administrator Camille Brown, City Recorder Stacey Child, Parks and Recreation Director Sean Conroy, Community Development Director John Jackson, Public Safety Director/Police Chief Eric Johnson, City Attorney Debbie Sanchez, Finance Director
Minutes Taken by:	Camille Brown, City Recorder

The items may not have been heard in the order below.

Mayor Wall called the meeting to order at 7:00 p.m. Cl. Lundberg gave the invocation and Cl. Reid led the Pledge of Allegiance.

OPEN FORUM: No comments were made.

APPROVAL OF MINUTES:

Item 1. **Approval of City Council Meeting Minutes – April 19, 2017**
Motion: Cl. Nelson moved to approve the meeting minutes for April 19, 2017.
Second: Cl. Farnworth seconded the motion.
Vote: Passed 5:0

PUBLIC HEARING ITEMS:

Item 2. **Consideration of a Resolution to rezone approximately four acres of property from the Agricultural Residential (A-2) zone to the Residential Agricultural (RA-1) zone and to amend the Emerald Estates Plat "D" subdivision to add three lots for a total of 12 lots located at approximately 800 West and 1200 South.**

Sean Conroy, Community Development Director, presented the staff report to those in attendance. This will be adding 3 lots on the Templeman's property and rezoning this property from A-2 to RA-1. The evaluation of the General Plan identifies the property as low density residential and the lots will meet zoning and subdivision standards. Staff is recommending approval with all DRC comments being met. Colby Peterson, Applicant stated that this proposal would be adding another phase to the existing Emerald Estates.

Motion: Cl. Nelson moved to approve a resolution to rezone approximately four acres of property from the Agricultural Residential (A-2) zone to the Residential Agricultural (RA-1) zone

and to amend the Emerald Estates Plat "D" subdivision adding three lots for a total of 12 lots located at approximately 800 West and 1200 South and resolve all outstanding DRC comments dated March 14, 2017 prior to recording.

Second: Cl. Farnworth seconded the motion.

Cl. Reid Aye
Cl. Lundberg Aye
Cl. Hansen Aye
Cl. Farnworth Aye
Cl. Nelson Aye
Vote: Passed 5:0
Resolution No. 2017-29

Item 3. Consideration of a Resolution approving a request to apply a Transferable Development Rights Receiving Site (TDR-R) Overlay to a 190-acre property known as the Preserve located at approximately 1600 South and 1300 East, and the review of a revised concept plan for the development increasing the total density from 92 lots to 176 lots.

Cl. Lundberg stated that back in 2007 he represented certain landowners in the Preserve Subdivision. He acted as a private attorney prior to him serving on the City Council. Due to the potential conflict of interest he asked that he be recused from this item. The Mayor and City Council accepted his recusal.

Sean Conroy, Community Development Director, reviewed the staff report for those in attendance. Sean reviewed the TDR program and ordinance. Any property could be a TDR sending site, but a property owner cannot apply to be a sending site at this time as it ended in 2010. A TDR receiving site is designed to increase density in the A-2, RA-1, PRC, PD, PRD and SDP zones. One TDR certificate is required for every lot over the allowed density of the zone. The city has issued 354 TDR certificates and 184 have been used. Approximately 750 acres of green space have been protected by this program.
The city owns 20 TDRs that were created with the purchase of a 20 acre property on Highway 89 for a future park. The city was going to sell the 20 TDRs to pay down the debt of the park, but they have not sold any.
He gave a background on the history of the land back to 2003. In 2006 an MOU was signed and approved for 92 lots.
The applicant's proposal is for 144 lots that the applicant would control. Plat A will be re-plated and will be replaced with a new plat of 14 lots. The applicant is proposing a clubhouse and the alternative to the cemetery dedication would be a cash donation and public amenities. The entire 190 acres would be eligible to use TDRs. A park is being proposed with a trail system throughout the development. A rendering of the property was reviewed detailing what the subdivision would look like including a large park and pond as part of the open space.
Andy Ball, applicant, stated that they have been working hard on this since June. He turned the time over to David Nemelka and his attorney.
David Nemelka, Mapleton, stated that he lived in Mapleton for 40 years. There are people here that are for the development and some that are against it. He purchased a lot in this area so that his family could live near both sides of their family. They love the open space and after they bought their lot the project failed. It has now been 10 years and his family has gotten older and he doesn't need 3 acres now and he is for this development. There has been some confusion and emotion when it comes to TDRs. This will not be a high density development. This proposal satisfies the Mapleton vision statement. Goal number 9 of the vision statement reads, "encourage the clustered concept of city planning and development." There will be 25 acres of open space in this proposal. There are some misconceptions he has heard, and this has never been a TDR receiving site. TDRs were not used on the lower Preserve subdivision. The city has a

master plan for 1600 south and they will comply with this. A water study will be done, property taxes will be paid and he doesn't believe that it will be a negative impact, the development will pay for itself. When his family moved here in 1970 it was a 2-acre zone, then there was a change and lot sizes went to 2 ½ acres back down to 2 acres and then to 1 acre lots. The Eagle Rock subdivision brought a lot of uproar and it is a beautiful development. Is this a good proposal for Mapleton? Does it comply with laws and ordinances? The biggest objection is density. In 2003 higher density was approved and that is what is being proposed tonight. The lower Preserve is higher density. A 2-acre subdivision has not been approved for 20 years. He thinks the density is a positive with a proposal of 1.43 acre lots. Himself and the other property owner that has a 3 acre lot in Plat A is for amending Plat A. There has not been anything done on that plat and plats are vacated frequently. The existing plat was not a good idea. He has not seen any applicant propose 25 acres of open space. There are no public trails to the mountain and the 2 miles of trails is for the public's benefit. There is not a legal public access to the mountain with a maintained and groomed trail. The city is fortunate to have Mapleton residents wanting to do this development.
Craig Terry, Applicant's attorney, Parsons Behle and Latimer, reviewed the history of the land. He added that nothing in the 2006 MOU resends the TDR overlay zone status. The 2006 MOU did not revoke the TDR-R overlay zone and is requesting the city recognize the previous TDR-R overlay zone on the 175-acre parcel. They would request to vacate all of Plat A as previously recorded. No improvements have been done and they would like the designation for the TDR overlay zone in Plat A. The concept plan as presented is consistent with the Mapleton City Code.
Cl. Reid asked if the HOA fees had ever been assessed, the attorney said no. They were rescinded for failure to file an annual report.
Mayor Wall read a statement with regards to what had been reviewed for this hearing and added his feelings on how this development has brought a different feeling to the Mapleton community. The points of order for the remainder of the night were read and he did a quick pull as to who is in favor of the development and who was opposed to it. This will be public comment not a discussion with the council.
Cl. Farnworth read a statement and stated that he seconded what the Mayor's comments were.
The public hearing was opened at 8:43 pm.
Dee Mower stated that she wanted this land to be a good development. The citizens of Mapleton are lucky to have such a good Mayor. He asked a lot of her in the beginning and she thought the Mayor asked to much of her, but now the Ball's are here to do a great development and she would support their proposal
Vaughn Cook stated that he is for the development. He has heard rumors that he and his family have been bought off or going to be compensated in some fashion by being in favor of this and that is not true. He would ask the council to please approve this.
Megan Op't Hoff stated that she is 16years old and that laws are put in place for a reason. She doesn't think laws should be changed or this could set precedence for other developers. By approving this development it could lower property values of those homes that are already there. She is asking the council to deny this request.
Leslie Joyner stated that she believes the people of Mapleton are afraid of change, but once things are changed they will be changed forever. Development is going to happen on that property, but maybe it could be done with fewer homes and the people would feel more comfortable.
Jim Jurgens stated that he is concerned that there is nothing in their agreement that would prevent them from flipping the property and selling to another developer.
JB Pratt stated that he loves the concept of a planned development, but the current proposal he disagrees with. He believes that it is in conflict with the vision statement. He does like the concept of parks and trails but is not in favor of that many homes.
Anthony Perry stated that he does not think that by allowing TDRs on an already developed plat is legal to do and this has never been done.

Andrew Petersen stated that the land that this is eligible for should not be approved. He thinks the land could be flipped and sold to another developer. He bought his lot with the assumption that there would only be 92 lots behind him.
Jason Crandall stated that he believes that Mr. Nemelka threatened him to say that HOA fees will be assessed. The CCRs were recorded by the owner of the Preserve
Ryan Edmunds stated that he is glad that the crowd was able to repeat the Pledge of Allegiance together. This should be an open and civil discussion. He thinks a similar proposal would be good but with fewer homes. He thinks the proposal as stated is great, but he doesn't think this can be done with the current zoning. He would like it kept at 92 lots.
Mark Braby stated that this is such a pretty place for this proposal. He knows this would be a pretty development and the Ball's would enforce the CCRs
Matt Stewart stated that if the MOU is not going to be followed maybe there is not a need for them. He would like to see the current items in the MOU stood by with the trail access and the cemetery. He did get the impression that this was a done deal when Mr. Ball spoke at the Planning Commission meeting.
Jesse Brimhall lives in Park Meadows, and is a Real Estate developer. Stating that this is high density development, it just isn't. He looked at this project over the years and has never been able to see it as a feasible project. For a developer to take this on it has to make sense. The lots couldn't sell when they were so big and he thinks this is a great project, and a place where he would like to relocate to.
Kaylene Hamilton stated that she is concerned about the high amount of traffic that this would add to 1600 South.
Tyson Bell stated that at the first meeting he attended he thought it was a done deal. He appreciates the Mayor and Ryan's comments. He thinks there needs to be more objective and look at the big picture.
Candice Archibald moved to Mapleton in 2013 and she came here because of the way it was presented to them. The lots on the south side are a lot smaller, and the biggest thing is lot sizes. Change is scary and what if it changes again.
Ben Card stated that he was on the City council in 2003. It was a big condition that the dedication of a cemetery was agreed to. If it wasn't going to be on this property it was to be somewhere else in the city. He does not think that this condition should be deleted. He would urge the council to preserve Maple Mountain and leave it as it is.
Ann Gomez stated that she is the daughter of the late Marilyn Peterson who was a Mayor for a short time. She was someone that had vision. Before this is voted on she would like the council to take the traffic on 1600 South into consideration.
Patti Lant, knows the Balls, they will keep their word and she doesn't know how people could think that this is high density. The trail access is great.
Barry Steed stated that this will be a good development. This property has been very hard to maintain. If it isn't developed by the Ball's it will sit there and there will not be an access to the Bonneville Shoreline trail.
Kim Detmer stated that she grew up in Sandy. Her and her husband are just renting a house in Mapleton. They have decided that this is where they want to make their home. They lived in a Planned Development in Texas and they are for this development. .
Kari Dawn Edmunds stated that these types of developments are beautiful when they are done right. She thinks the amenities should be built before the homes. She thinks the proposal has too many homes and the lots are too small.
Kerry Oman stated that his family grew up here and his parents live at the end of 1600 south and are one of the biggest land owners. They are in favor of this.
Kendall Simpson, would like to define high density. They trusted what was sold to them and that it would be developed like it was presented. This is higher density than was previously outlined in the pamphlet.

Jim Williams, Dee Mowers husband, stated that the land is so hard to take care of and the amount of people that trespass on the property and think it's ok is overwhelming. She has put a lot of money into this and to have it go to a good developer would be great.
Rory Murphy stated that he would like to invest in buying a lot here. People do not take care of large lots and he thinks that the amenities are very rich that are being proposed.
Sandy Lai, purchased 12 acres from the Pratts. They were not looking for neighbors. She believes people would buy 3 acre lots if they are marketed correctly.
Mika Perry stated that he is pro development and was raised in Mapleton. He watched the negotiations as the Preserve was being proposed. It had an open rural feel and the 92 lots were approved.
Lisa Cook stated that she has lived in Mapleton for 27 years. Neighbors have accused the Cook's of being "paid off" to support this development. There is a lot of emotion tied to this. They are ready to downsize to a 1 acre lot.
Sharee Killpack stated that there are two possible reason that she thought it was a done deal. She sits on the Planning Commission and they wanted a work session with the City Council. The council did not want a work session and this bothered her. She thinks that large 3 acres are desirable if marketed right.
Justin Perry stated that he is not afraid of change. He wondered why the TDRs were taken off and then put back on. He also thinks that there is a market for larger lots.
Daynon Haggard, moved here in 1985. Has lived away and hopes that differences can be set aside. He would love to move back here.
Dallas Hakes stated that his prospective is for the future and what is in the best interest of the city. He has concerns with the zone that was changed. He thinks there needs to be a bigger park, due to the overcrowding at the current parks. He thinks the city is poking themselves for future litigation.
Douglas Lai stated that he believes that the upper preserve and the lower preserve are all one subdivision. There is a need for larger lots and the density has already been shifted.

Council took a 10 minute break.

Park Roney stated that he is grateful for the process, but he is in opposition for the proposal. He doesn't want to bring the TDRs back and wishes there could be a compromise. The city council needs to uphold the current laws and ordinances. He did feel like it was a done deal.
Robert Baird stated that he thinks this will lower property values. He thinks there is other areas in Mapleton to develop, and would not like it done in this area.
Derek Mower stated that he is quite familiar with the Preserve. He has looked into developing the property, but could not make the numbers work. He believes the Balls will do this the right way.
Arron Elton, Dovie Balls brother, is pro-development. He is one of the financial partners and they will follow through on what they say they will do. They are committed and trust the council's judgement.
David Simpson stated that after 2008 the market was a bust.
Lyle Haycock stated that he knew this property would be developed. Mapleton is unique and he is opposed to the development.
Mike Dibble stated that he has been to all of the meetings and hasn't heard any threatening or abusive comments. He thinks the council is being persuaded. The designation was removed from the 2007 zoning map. The city acknowledged there was a density change.
Ryan Keisel, appreciate Leslie Joyner's comments. There is a lot of emotion and he has had to stand by what he believes. This is not a raw piece of ground. He bought in when there was going to be 92 lots. He also felt like this was a done deal. The property should remain as is, if it needs to change there is a market for it, not with the TDRs. By using TDRs to limit density, opens the city to liability
Tresa Heaton stated that in no case shall TDRs be put on a previously platted subdivision. Shouldn't they be protected when they have developed their property. There needs to be more research from 2006-07. She would ask the council to be forthcoming with what is asked.

Lydia Peterson, lives in the Preserve, she is disappointed that the approved plat can be changed. They have a letter that has been signed by 32 residents. .
Kim Kehrer, please be consistent.
Chris Salisbury stated that he worked in the development industry for the last 21 years, he is pro-development, and thinks something should happen with the property. Leaving it as is would be a mistake. There is not a developer that could make the current plat work. The current plat is unrealistic. At the neighborhood meeting he heard the Mayors comments and he felt the Mayor was saying that you can't stop a developer from taking his project through the process.
Erlynne Simpson stated that she respects the time and efforts the council puts forward. 92 lots was the number that was approved and she thinks that it should stay the same.

Public hearing closed at 11:12pm

The council stated that they have a lot of questions that need to be discussed with the City Attorney. The Mayor asked all council members to have their questions to Eric by next Monday.
Cl. Farnworth, he has a whole page of questions, talk to several people.

Motion: Cl. Farnworth moved to continue the item to the June 7, 2017 City Council meeting.
Second: Cl. Nelson seconded the motion
Cl. Hansen Aye
Cl. Farnworth Aye
Cl. Nelson Aye – Cl. Nelson stated that he would love to see a good development go in. He would like a compromise, but doesn't know the right number.
Cl. Reid Aye – Cl. Reid stated that he agreed with Cl. Nelson's comments.
Vote: Passed 4:0

Item 4. Consideration of a Resolution adopting the tentative budget for fiscal year 2017-2018.
Debbie Sanchez, Finance Director, reviewed the staff report for those in attendance. Public hearing was opened at 7:10 pm and no comments were made.
Motion: Cl. Nelson moved to approve a resolution adopting the tentative budget for fiscal year 2017-2018 and set a public hearing for the finalization of the budget on August 19, 2017 City Council.
Second: Cl. Reid seconded the motion
Cl. Lundberg Aye
Cl. Hansen Aye
Cl. Farnworth Aye
Cl. Nelson Aye
Cl. Reid Aye
Vote: Passed 5:0
Resolution No. 2017-30

ACTION ITEM:
Item 5. Consideration of a Resolution amending the current credit card fee.
Motion: Cl. Farnworth moved to continue this item to the May 17, 2017 City Council meeting.
Second: Cl. Nelson seconded the motion
Cl. Hansen Aye
Cl. Farnworth Aye

Cl. Nelson Aye
Cl. Reid Aye
Cl. Lundberg Aye
Vote: Passed 5:0

Jim Lundberg was reseated back to the City Council at 11:35 pm

MAYOR, COUNCIL AND ADMINISTRATIVE REPORTS:

Sean Conroy reported that the bid opening will be held this week for the second phase of the trail.

Cory Branch stated that the Ira Allan parking lot has dried out and they will not have to bring in more dirt. He stated that the Spring Cleanup with the dumpsters on the corner of 300 West and 400 North went well and he thinks this is a good thing for the community. He said that they are still working with the adjacent land owner for the acquired property west of Ira Allan Parking lot.

CLOSED MEETING:

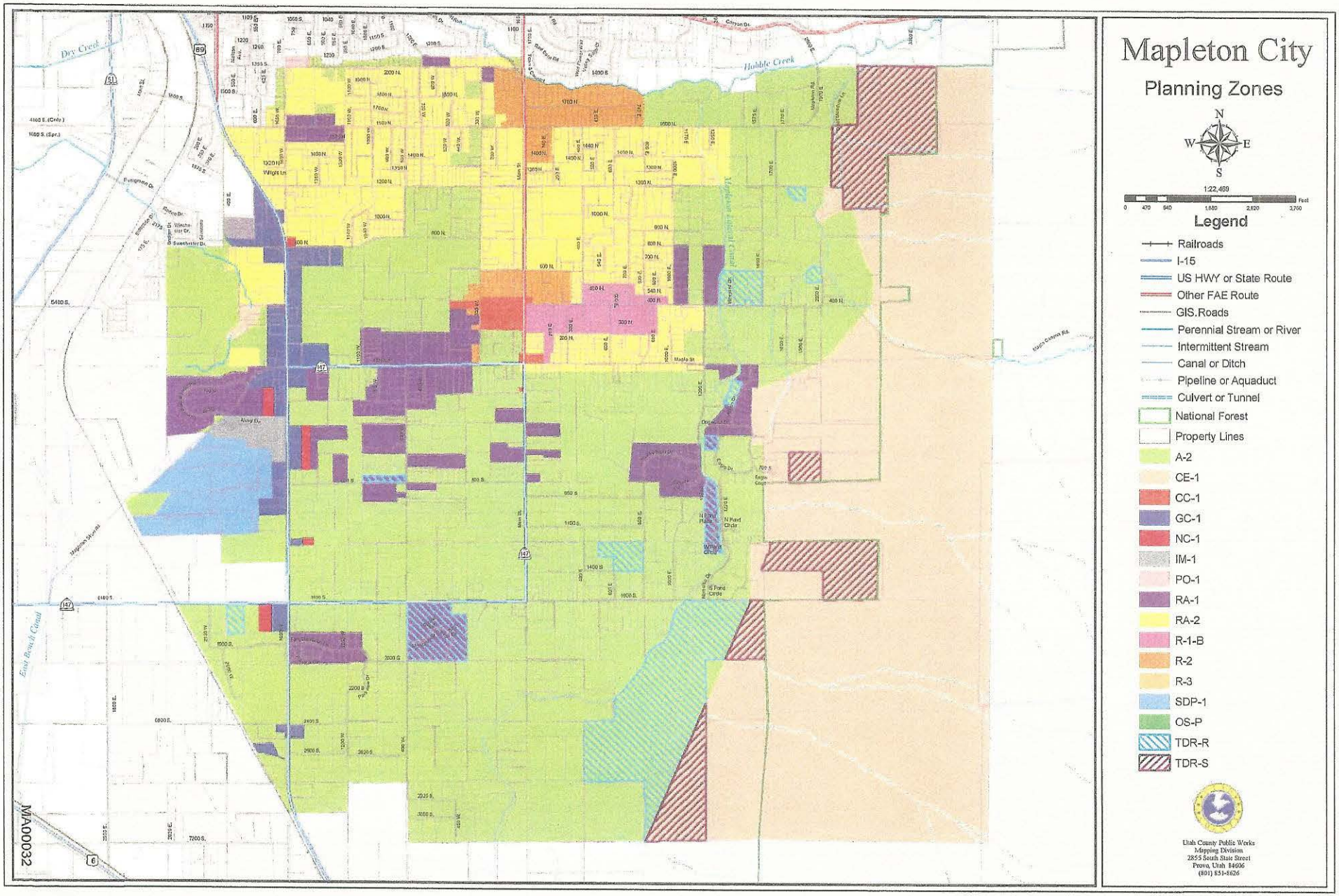
Motion: Cl. Farnworth moved to close the open session open a closed meeting pursuant to U.C.A. §52-4-205 for the purpose of discussing the purchase, exchange or lease of real property and pending litigation.
Second: Cl. Nelson seconded the motion
Vote: Passed unanimously at 11:45 pm.

Motion: Cl. Farnworth moved to adjourn the meeting.
Second: Cl. Nelson seconded the motion.
Vote: Passed unanimously at 12:12 am

APPROVED: **May 17, 2017**

Camille Brown, City Recorder

EXHIBIT 14


Mapleton City
Planning Zones
N
W
E
S
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0 470 940 1,880 2,820 3,760 Feet
Legend
Railroads
I-15
US HWY or State Route
Other FAE Route
GIS.Roads
Perennial Stream or River
Intermittent Stream
Canal or Ditch
Pipeline or Aquaduct
Culvert or Tunnel
National Forest
Property Lines
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CE-1
CC-1
GC-1
NC-1
IM-1
PO-1
RA-1
RA-2
R-1-B
R-2
R-3
SDP-1
OS-P
TDR-R
TDR-S
Utah County Public Works
Mapping Division
2855 South State Street
Provo, Utah 84606
(801) 851-8626
Dry Creek
Hobble Creek
East Bench Canal
Maple St
Main St
Wight Ln
Alley Dr
Eagle Canyon Rd
Magnolia Street
Canyon Dr
Fungmen Dr
Rocky Dr
S Winchester Dr
S Sweetwater Dr
Vineyard Dr
Dogwood Dr
Cherry Dr
Eagle Court
N Pond Circle
W Pond Circle
S Pond Circle
Pine View Dr
Mapleton Rd
Mapleton Lane
Sutton Ave
Sutton Rd
Flat Iron Rd
West Fork Rd
Vista Sunset Dr
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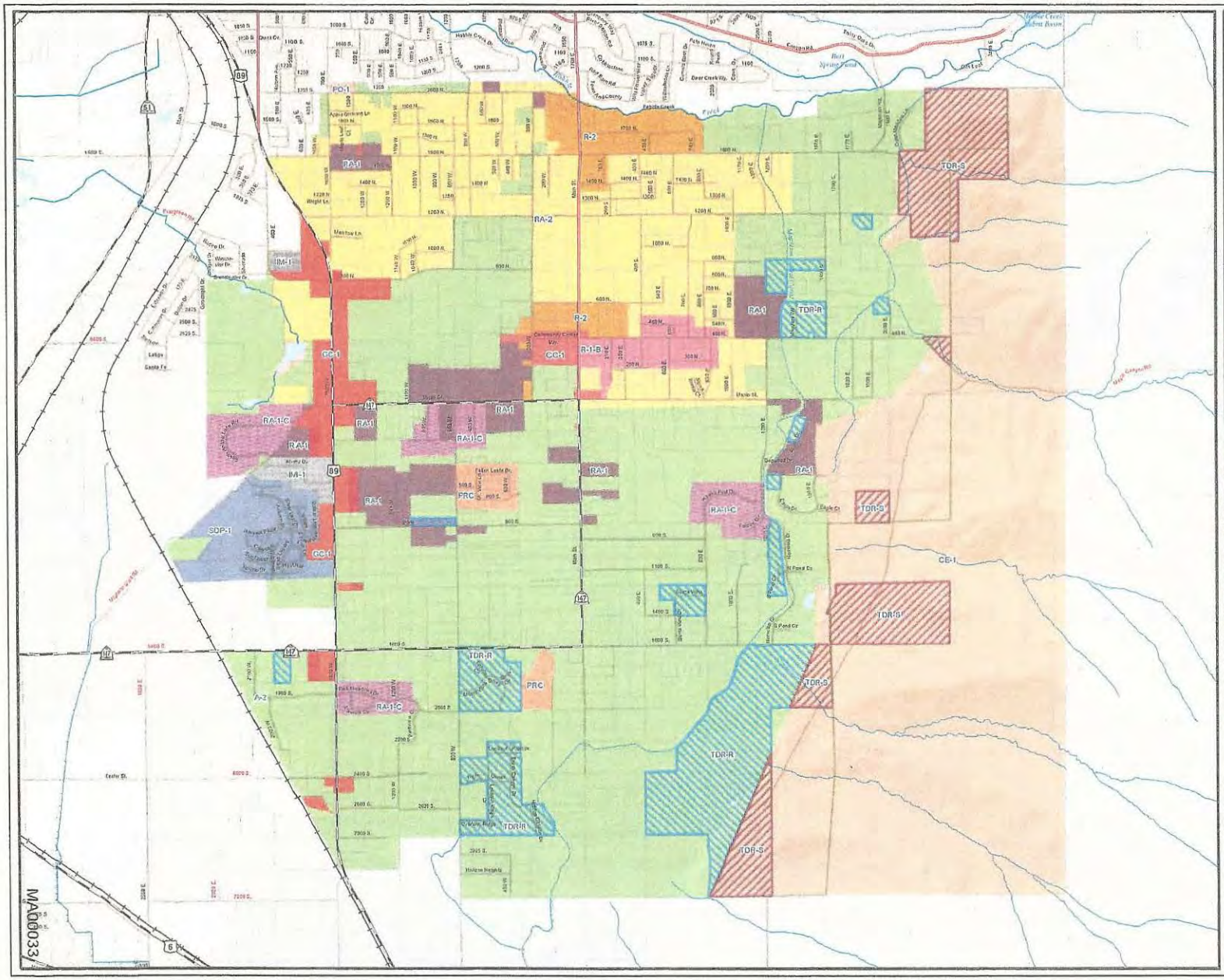
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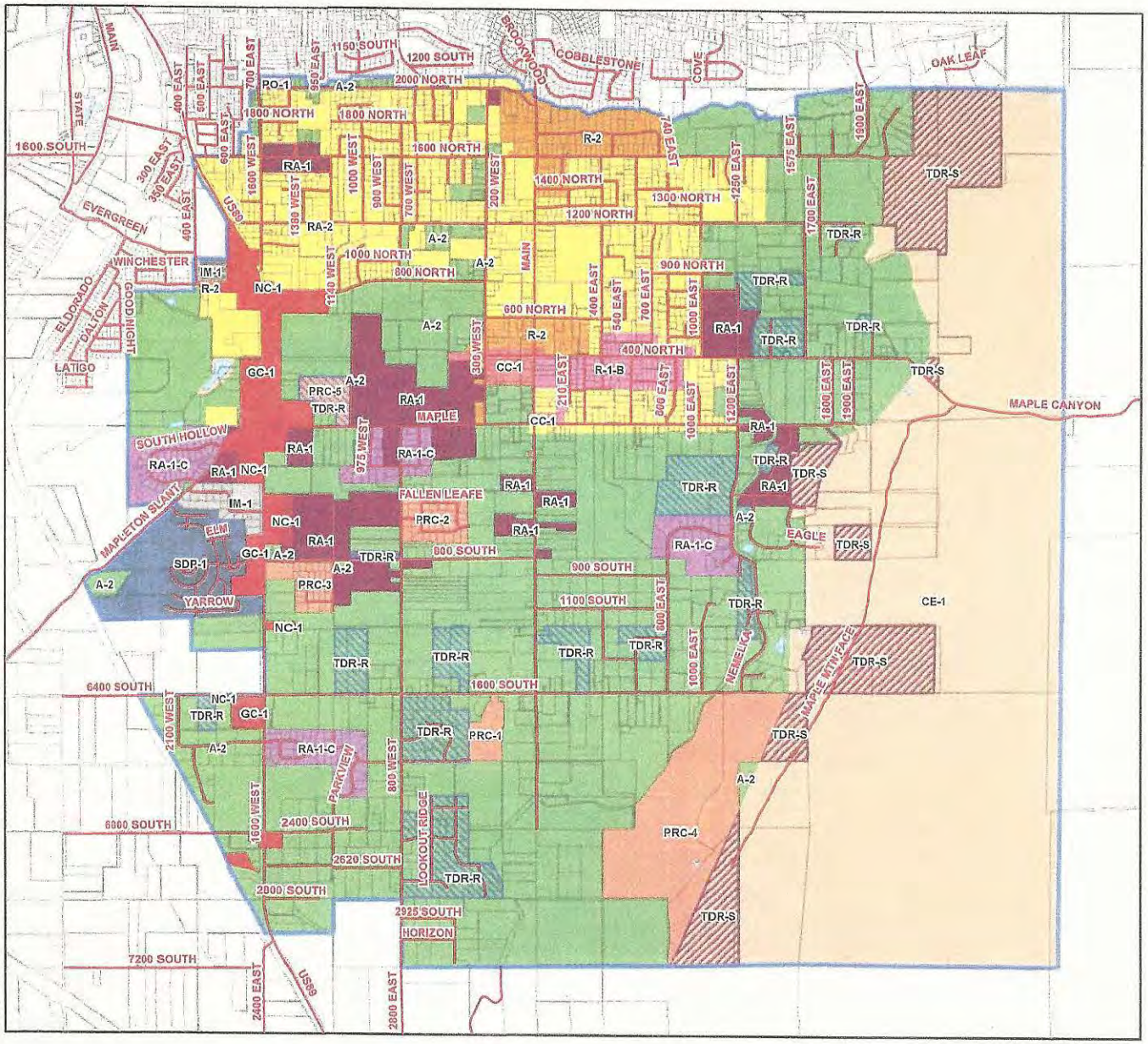
R-2
RA-2
IM-1
CC-1
R-1-B
TDR-R
TDR-S
RA-1-C
PRC
SDP-1
CE-1
A-2
Main St.
Nebo Dr.
Mapleton Wy.
Maple St.
Pond Cir.
Eagle Cir.
Hillside Dr.
Hillside Heights
Meadow Ln.
Wright Ln.
Cedar Dr.
Castle Dr.
Hollow Dr.
Hollow Creek
Dry Creek
Dry Creek Wy.
Dry Creek Rd.
Dry Creek Cir.
Dry Creek Ln.
Dry Creek Cove
Dry Creek Ct.
Dry Creek Dr



Mapleton Zoning Map

0 1,000 2,000 3,000 4,000 5,000 6,000 Feet

1 inch equals 2,000 feet

Legend

- Roads
- Mapleton_Boundary
- Parcels as of 5-2-07
- Lakes

Zoning Designation

- A-2
- CC-1
- CE-1
- GC-1
- IM-1
- NC-1
- PO-1
- PRC
- R-1-B
- R-2
- RA-1
- RA-1-C
- RA-2
- SDP-1
- TDR-R
- TDR-S

MAPLETON CITY CORPORATION

Mapleton City makes no warranty with respect to the accuracy, completeness, or usefulness of this map. For official zone verifications, contact the Community Development Department.

Last updated: 5/7/07

MA00034

EXHIBIT 15

Chapter 18.82D
PRESERVE AT MAPLETON SUBDIVISION, PLANNED RESIDENTIAL COMMUNITY (PRC-4) ZONE

18.82D.005: THEME:

The Preserve at Mapleton planned residential community carries with it the theme of luxurious country living. Residents of the Preserve at Mapleton will enjoy walking trails, water features, welcome houses, horse riding trails, access to the Bonneville Shoreline Trail and Maple Mountain, large ranch and estate lots, and acres of landscaped open space. This two hundred forty (240) acre drop of country elegance will carry with it a feeling of greatness that will influence all of the great city of Mapleton City. (Ord. 2007-18, 8-7-2007, eff. 12-11-2007)

18.82D.010: NAME AND PURPOSE:

The name of this zone shall be the Preserve at Mapleton PRC-4 zone. The purpose of this zone is to protect the integrity of the Preserve at Mapleton and keep the theme consistent throughout the entire planned residential community. Compliance with the set forth zone will ensure a more attractive and desirable environment within this residential community in Mapleton City. (Ord. 2007-18, 8-7-2007, eff. 12-11-2007)

18.82D.020: PERMITTED USES:

One single-family dwelling unit per legally created lot and subject to section 18.82D.090 of this chapter.

Public utility facilities.

Temporary office building used as an office in connection with the sale of property within a subdivision under construction, provided that the temporary office is located on the same tract of land as the subdivision. A permit therefor shall be valid for not more than one year, at the expiration of which time the use shall be discontinued. This use is subject to subsection 18.84.200B of this title (temporary building construction).

Water reservoirs and water facilities. (Ord. 2007-18, 8-7-2007, eff. 12-11-2007)

18.82D.030: PERMITTED ACCESSORY USES:

Accessory uses are permitted in the Preserve at Mapleton residential community zone, provided that they are incidental to the main residential dwelling unit, they do not alter the character of the permitted principal use, and are subject to any required approvals or requirements. Such permitted accessory uses and structures include the following:

Animal rights; estate lots (lots 1 through 7 and 17 through 48): The raising, care and keeping of livestock and fowl will be limited to one animal unit and their seasonal offspring for each twenty thousand (20,000) square feet; and barns, corrals, pens, coops and other structures associated with animals as approved by section 18.82D.090 of this chapter.

Animal rights; ranch lots (lots 56 through 92): The raising, care and keeping of livestock, fowl, feed and produce, barns, corrals, pens, coops and other structures associated with animals approved by section 18.82D.090 of this chapter. One animal unit and their seasonal offspring for each thirty thousand (30,000) square feet shall be allowed.

Customary residential household pets as defined in section 18.08.345 of this title.

Fences, walls subject to section 18.82D.090 of this chapter.

Home occupations are subject to section 18.84.380 of this title.

Noncommercial plant nurseries and private greenhouses subject to section 18.82D.090 of this chapter.

Owner occupied accessory apartments, subject to approvals outlined in sections 18.82D.090 of this chapter and 18.84.410 of this title.

Pools, tennis courts and other recreational site amenities shall be permitted subject to section 18.82D.090 of this chapter.

Up to one common clubhouse/community facility may be constructed on a private, commonly held parcel. Such facility shall be limited to the same restrictions and standards as a ranch lot (lots 56 through 92) described herein and in accordance with section 18.82D.090 of this chapter.

Uses permitted for the clubhouse/common facility may include the following:

Accessory structures.

Dressing and locker rooms.

Exercise and entertainment facilities.

Food and retail sales limited to the support of the facility and its users.

Meeting and gathering areas.

Outdoor amenities such as tennis, pool, play areas, gardens and other landscape features.

Service structures and yards for maintenance of the common facilities of the PRC-4 zone.

Any structures allowed as accessory uses shall be approved by section 18.82D.090 of this chapter whether a building permit is required or not. (Ord. 2007-18, 8-7-2007, eff. 12-11-2007)

18.82D.040: LAND USE STANDARDS:

There shall be no land use standards except as set forth in section 18.82D.090 of this chapter.

The minimum lot size for the ranch lots (lots 56 through 92) shall be 2.4 acres (104,544 square feet).

The minimum lot size for the estate lots (lots 1 through 55) shall be 0.7 acres (30,492 square feet). (Ord. 2007-18, 8-7-2007, eff. 12-11-2007)

18.82D.050: BUILDING SETBACKS FOR RANCH LOTS (56 THROUGH 92):

A. Main Buildings: Building setbacks are governed by established building envelopes that far exceed requirements for PRC zones. These envelopes are set forth by the homeowners' association and are approved under section 18.82D.090 of this chapter. In the case of conflict with setback requirements for a PRC zone, the greater setback will govern.

B. Accessory Buildings: Accessory building setbacks are governed by established accessory building envelopes that far exceed requirements for PRC zones. These envelopes are set forth by the homeowners' association and are approved under section 18.82D.090 of this chapter. In the case of conflict with setback requirements for a PRC zone, the greater setback will govern. (Ord. 2007-18, 8-7-2007, eff. 12-11-2007)

18.82D.060: BUILDING SETBACKS FOR LOTS 1 THROUGH 55:

A. Main Buildings: Main buildings shall have the following setback requirements. In the case of conflict with setback requirements for a PRC zone, the greater setback will govern. All setbacks are measured from property line. These setback requirements may be reduced under section 18.82D.090 of this chapter, provided no setbacks are reduced to less than requirements for a PRC zone.

Front yard setback: Thirty feet (30').

Side yard setback: Ten feet (10') on one side and twenty feet (20') on the other. A twenty foot (20') side yard is required at an existing adjacent ten foot (10') side yard resulting in a minimum of thirty feet (30') from adjacent structure, unless the lots on either side of the subject lot have begun construction and used their ten foot (10') setback on the subject lot's sides. In this case the subject lot shall choose which side they shall use their ten foot (10') setback and which side they shall use their twenty foot (20') setback. In this case a lot must still meet the requirement of a ten foot (10') setback on one side and a twenty foot (20') setback on the other side totaling a minimum of twenty feet (20') between structures on one side and thirty feet (30') on the other side. However, lots 50 through 53 may have a ten foot (10') side yard setback on both sides.

Corner side yard setback: Thirty feet (30').

Rear yard setback: Forty feet (40'). However, lots 8 through 16 and 49 through 55 have a twenty five foot (25') rear yard setback.

B. Accessory Buildings: See section 18.82D.070 of this chapter for setback increases for accessory buildings over twelve feet (12') in height.

Accessory buildings shall be located thirty feet (30') behind the nearest front portion of a main building.

Accessory building side yard setback: Three feet (3') but no less than thirteen feet (13') from an existing accessory building on the adjacent property and forty feet (40') from an existing residence on the adjacent property.

Accessory building rear yard setback: Three feet (3') but no less than thirteen feet (13') from an existing accessory building on the adjacent property and forty feet (40') from an existing residence on the adjacent property. (Ord. 2007-18, 8-7-2007, eff. 12-11-2007)

18.82D.070: BUILDING HEIGHT STANDARDS:

A. Main Buildings: Building height of residences shall not exceed two (2) stories above the basement level with a maximum of thirty five feet (35') measured from finished grade of the lot to the midpoint of the main roof pitch, excluding dormers, chimneys, mechanical and other equipment. Measurement shall be taken on any three (3) sides of the structure (not necessarily from a walk-out basement). Finished grade shall be established ten feet (10') away from the structure based on average elevation of each measured side. Dormers shall not be allowed above thirty five feet (35') measured from the finished grade to the bottom of the windowsill.

B. Accessory Buildings: Accessory buildings shall be limited to a maximum of thirty five feet (35') with no increases in height for setbacks, provided structures over twelve feet (12') have a ten foot (10') minimum setback. Building height for an accessory building shall be measured from finished grade of the lot to the highest point of the roof. Measurement shall be taken on any three (3) sides of the structure (not necessarily from a walk-out basement). Finished grade shall be established ten feet (10') away from the structure based on average elevation of each measured side. (Ord. 2007-18, 8-7-2007, eff. 12-11-2007)

18.82D.080: GARAGE AND PARKING STANDARDS:

Shall be calculated as follows:

Square Foot Area Of Residence (Based On Applicable CC&Rs)	Number Of Garage Spaces	Total Off Street Spaces (Including Garage)
Under 4,500	~~2~~	~~4~~
4,500 - 7,999	3	4
8,000 - 14,990	4	6
Over 15,999	5	8

(Ord. 2007-18, 8-7-2007, eff. 12-11-2007)

18.82D.090: DESIGN REVIEW COMMITTEE APPROVAL AND STAMP:

A design review committee (DRC) has been established for the applicable CC&Rs to verify and enforce design. No building permit or fence application will be accepted by the city without the applicable DRC approval and stamp. All building guidelines will meet applicable Mapleton City and building code standards as well as the standards in the CC&Rs and design guidelines. (Ord. 2007-18, 8-7-2007, eff. 12-11-2007)

18.82D.100: COMMON AREAS AND BUILDINGS:

Up to two (2) welcome houses may be constructed on common right of way areas. One located at the intersection of 1600 S and Preserve Drive and one located at the intersection of Maple Canyon Drive and Preserve Drive. Such structures shall be limited to four hundred (400) square feet of area (excluding basements) and one story/sixteen feet (16') in height measured from finished grade of the lot to the highest point of the roof. The welcome house structures shall not be located closer than six feet (6') from a roadway curb and eighteen feet (18') from the boundary of the PRC-4 zone.

Bridge structures and water features may be constructed in a common right of way area or other easement. Such structures shall allow for minimum road widths and construction requirements and shall not exceed eight feet (8') in height.

Up to one common clubhouse/community facility may be constructed on a private, commonly held parcel. Such facility shall be limited to the same restrictions and standards as a ranch lot (lots 56 through 92) described herein and in accordance with section 18.82D.090 of this chapter.

Uses permitted for the clubhouse/common facility may include the following:

Accessory structures.

Dressing and locker rooms.

Exercise and entertainment facilities.

Food and retail sales limited to the support of the facility and its users.

Meeting and gathering areas.

Outdoor amenities such as tennis, pool, play areas, gardens and other landscape features.

Service structures and yards for maintenance of the common facilities of the PRC-4 zone.

Open space and trails shall be used for the enjoyment of the community. The trails shall be used for walking, jogging, bicycling, horseback riding and other nonmotorized activities. With the exception of service vehicles owned and operated by the homeowners' association, no motorized vehicles shall be allowed in the common areas. All trails and open space will be maintained and improved by the homeowners' association. (Ord. 2007-18, 8-7-2007, eff. 12-11-2007)

18.82D.110: DENSITY:

The total density allowed in the Preserve at Mapleton PRC-4 zone is ninety two (92) individual building lots and common area buildings. No new subdivision lots shall be permitted beyond those originally approved for the purpose of increasing this density. (Ord. 2007-18, 8-7-2007, eff. 12-11-2007)

18.82D.120: EMERGENCY ACCESS:

In the event of a natural disaster or other emergency, the residents of the Preserve at Mapleton must provide reasonable emergency access to areas of concern or danger for the proper authorities. An example of this would be the need to have access to the debris basin, or an injury on one of the common trails. (Ord. 2007-18, 8-7-2007, eff. 12-11-2007)

18.82D.130: TRANSFER OF COMMON AREAS TO MAPLETON CITY IN THE EVENT OF DEFAULT BY THE HOMEOWNERS' ASSOCIATION:

In the event of a default by the homeowners' association, all of the homeowners' association's right, title and interest in and to the common areas, including, but not limited to, the debris basin, shall pass to Mapleton City. Upon default by the homeowners' association and transfer of ownership of common areas to the city, the residents within the development shall pay all costs of maintenance of common areas to the city. In the event of default, Mapleton City may assess a monthly maintenance fee to all residents in order to maintain the common areas as they were previously maintained. For purposes of this section, the occurrence of any of the following shall constitute a default by the homeowners' association:

A. The dissolution or liquidation of the homeowners' association;

B. The homeowners' association shall become insolvent, or shall suffer or consent to or apply for the appointment of a receiver, trustee, custodian or liquidator of itself or any of its property, or shall generally fail to pay its debts as they become due, or shall make a general assignment for the benefit of creditors; the homeowners' association shall file a voluntary petition in bankruptcy, or seeking reorganization, in order to effect a plan or other arrangement with creditors or any other relief under the bankruptcy code (meaning the bankruptcy reform act of 1978 [11 USC section 101-1330] as hereafter amended or recodified), or under any state or federal law granting relief to debtors, whether now or hereafter in effect; or any involuntary petition or proceeding pursuant to the bankruptcy code or any other applicable state or federal law relating to bankruptcy, reorganization or other relief for debtors is filed or commenced against the homeowners' association or the homeowners' association shall file an answer admitting the jurisdiction of the court and the material allegations of any involuntary petition; or the homeowners' association shall be adjudicated as bankrupt, or an order for relief shall be entered against the homeowners' association by any court of competent jurisdiction under the bankruptcy code or any other applicable state or federal law relating to bankruptcy, reorganization or other relief for debtors. (Ord. 2007-18, 8-7-2007, eff. 12-11-2007)